

26CMCV00507 26CMCV00507

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-09

Motion: DEFENDANT THE GLORY CHURCH LA'S MOTION TO SET ASIDE DEFAULT

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Case Number: 26CMCV00507 Hearing Date: September 9, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

AJALON TEMPLE OF TRUTH,

Plaintiff,

vs.

NED

EBBS, JR., et al.,

Defendants.

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CASE NO: 26CMCV00507

[TENTATIVE]

ORDER RE: DEFENDANT THE GLORY CHURCH LA'S MOTION TO SET ASIDE DEFAULT

Dept.

A

DATE:

September 9, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 03/17/2026

TRIAL:

03/01/2027

MOVING

PARTY: Defendant The Glory
Church LA

RESPONDING

PARTY: Plaintiff Ajalon Temple of
Truth

1. Background

This is an action for breach of fiduciary duty. Plaintiff Ajalon Temple of Truth ("Ajalon") alleges that defendant Ned Ebbs, Jr. served as Ajalon's pastor and exercised control over its property. Ajalon alleges that Defendant Ebbs, after being removed as Ajalon's pastor, continued to exercise control over Ajalon's church property, rental income, and financial assets, and has failed to return or account for those assets.

2. Discussion

Defendant The Glory Church LA ("Glory") moves to set aside the default entered against it on April 24, 2026. Glory contends that its default was taken based on its excusable neglect, mistake, or surprise. Glory also contends that the default was entered before the expiration of its time to answer or demur.

Ajalon's opposition was untimely filed on September 1, 2026. Ajalon requests that the court exercise its discretion to consider its opposition under California Rules of Court, rule 3.1300. The court will consider Ajalon's opposition.

There are four bases upon which a defendant may seek to set aside a default: (1) relief for "mistake, inadvertence, surprise, or excusable neglect" under Code of Civil Procedure section 473, subdivision (b), (2) the default judgment was void as a matter of law, (3) lack of actual notice under Code of Civil Procedure section 473.5, subdivision (a), or (4) equitable relief for extrinsic fraud or mistake. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-982 (*Rappleyea*).)

A prematurely

entered default is void. (Schwab v. Southern California Gas Co. (2004) 114 Cal.App.4th 1308, 1320 [overruled in part on other grounds].) A default may only be entered after the defendant has been served with a summons and has failed to file responsive papers within the time prescribed in the summons. (Ibid.)

According to the proof of service filed on March 25, 2026, the summons and complaint were personally served on Glory on that date. Glory's responsive pleading deadline was therefore April 24, 2026, as under Code of Civil Procedure § 412.20, the time to file a responsive pleading to the summons and complaint is thirty days from service of the summons and complaint where service is personal.

Glory's default was taken on Friday, April 24, 2026, its last day to file a responsive pleading. Glory filed an answer to the complaint on Monday, April 27, 2026, one day after the deadline to respond.

As default was entered within Glory's time to respond, the default was entered prematurely and is therefore void. This is grounds to set aside the default that was entered against Glory.

3. Conclusion

Based on the foregoing, the court GRANTS Defendant The Glory Church LA's motion to set aside default. The default entered against it on April 24, 2026 is vacated. The court accepts the answer filed April 27, 2026 as Glory's responsive pleading. Glory is ordered to give notice.

IT IS SO ORDERED.

DATED: September 9, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court